



CHAPTER v.

An Act for conferring power upon the Senior Official Receiver in Companies Liquidation acting as liquidator of the Weston-super-Mare Grand Pier Company to sell by agreement the undertaking of that Company to extend the time for the completion of the authorised pier and works of that Company and for other purposes.

A.D. 1916.

[17th May 1916.]

WHEREAS by the Weston-super-Mare Grand Pier Act 1893 (hereinafter in this Act called "the Act of 1893") the Weston-super-Mare Grand Pier Company (hereinafter called "the Company") were incorporated with power to make the pier and works in that Act mentioned with a capital of one hundred thousand pounds and borrowing powers of twenty-five thousand pounds:

And whereas by the Weston-super-Mare Grand Pier Act 1907 such borrowing powers were increased to the sum of thirty-three thousand three hundred pounds:

And whereas the present issued capital of the Company is sixty-eight thousand pounds and the Company have borrowed on the security of their undertaking the sum of twenty thousand one hundred pounds and there is owing in respect of such borrowed money certain arrears of interest and the Company have other liabilities:

And whereas the Company have constructed under the powers of the Act of 1893 a portion of the pier and have erected thereon a large pavilion and other works and have expended thereon a sum of upwards of eighty-six thousand pounds:

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—

And whereas the Company have only paid one interim dividend to the shareholders and have for some time past been in financial difficulties :

And whereas on the first day of December one thousand nine hundred and fourteen an order was made by the High Court of Justice for the winding up of the Company :

And whereas the Senior Official Receiver in Companies Liquidation (hereinafter referred to as "the Official Receiver") remains in office as liquidator of the Company :

And whereas it is expedient that the undertaking of the Company should be sold and that power for that purpose should be conferred on the Company acting by the Official Receiver :

And whereas it has been agreed between the Official Receiver and the urban district council of Weston-super-Mare that the provisions contained in section 51 of the Act of 1893 for the protection of the Weston-super-Mare Improvement Commissioners (the predecessors of the said council) and in certain sections of other Acts relating to the Company for the protection of the said council should be repealed and that the provisions for the protection of the said council contained in this Act should be substituted for the provisions so repealed :

And whereas by the Weston-super-Mare Grand Pier Acts 1897 1899 1904 and 1907 (hereinafter in this Act respectively referred to as the Act of the year in which such Act was passed) the time limited by the Act of 1893 for the completion of the said pier and works was extended :

And whereas by the Weston-Super-Mare Grand Pier Act 1912 (hereinafter in this Act called "the Act of 1912") the time limited for the completion of the said pier and works was further extended to the twelfth day of May one thousand nine hundred and seventeen and the powers of the Company for completing the said pier and works will expire on that date :

And whereas it is expedient that the time limited for the completion of the said pier and works should be further extended :

And whereas the purposes aforesaid cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by

and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

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1. This Act may be cited as the Weston-super-Mare Grand Pier Act 1916 and the Act of 1893 the Act of 1897 the Act of 1899 the Act of 1904 the Act of 1907 the Act of 1912 and this Act may be cited together as the Weston-super-Mare Grand Pier Acts 1893 to 1916.

Short and
collective
titles.

2. The provisions of Part II. (Extension of Time) of the Railways Clauses Act 1863 are incorporated with and form part of this Act and in construing the said provisions of the Railways Clauses Act 1863 for the purposes of this Act the pier and works authorised by the Act of 1893 shall be deemed to be a railway and the Company shall be deemed a railway company.

Incorpora-
tion of part
of Act.

3. In this Act—

Interpreta-
tion.

The expression “the Company” means the Weston-super-Mare Grand Pier Company;

The expression “the Official Receiver” means the Senior Official Receiver in Companies Liquidation acting as liquidator of the Company;

The expression “the undertaking” means the pier and the works connected therewith authorised to be constructed by the Company under the powers of the Act of 1893 and includes all lands chattels effects and property whatsoever and wheresoever vested in or belonging to the Company (other than money in the hands of the Official Receiver) and all rights and easements in respect thereof belonging to the Company or pertinent to such lands and property and the benefit of all contracts and agreements entered into by the Company and all powers privileges authorities exemptions and other rights and interests of the Company whether statutory or otherwise;

The expression “the purchaser” means the local authority company or body who may purchase the undertaking;

The expression “the date of transfer” means the date on which a sale of the undertaking under the authority of this Act is completed;

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The expression "the creditors of the Company" means and includes all persons having any legal claim against the Company other than shareholders of the Company.

Power to
sell under-
taking by
agreement.

4. The Official Receiver may in the name and on behalf of the Company enter into and carry into effect an agreement for the sale of the undertaking upon such terms and for such consideration as may be approved by the High Court of Justice and may execute and deliver all such assurances and documents as may be reasonably required by the purchaser Provided that the sale of the undertaking shall not be completed except to a local authority or to a company or body legally constituted with perpetual succession such authority company or body being authorised to purchase the same.

Transfer of
undertaking.

5. As on and from the date of transfer the undertaking shall by virtue of this Act be transferred to and vested in the purchaser freed and discharged except as hereinafter provided from all rent charges liens claims of landowners and others and from all debentures mortgages bonds and other charges or incumbrances upon or affecting the undertaking and from all judgment and other debts and liabilities of the Company affecting the same but subject to the observance and performance by the purchaser of all continuing contracts and agreements of the Company and of all duties and obligations in connection with the construction working management and maintenance of the undertaking and to all exceptions savings and reservations subsisting at the date of transfer or to which the Company were subject immediately before that date by statute or otherwise.

Purchaser to
exercise
powers of
Company.

6. As from the date of transfer the purchaser may subject to the provisions of this Act complete equip work use maintain repair renew and improve the pier and works connected therewith authorised to be constructed by the Act of 1893 and may exercise and enjoy all or any of the rights powers privileges and exemptions including all powers of demanding taking and recovering tolls rates fares and charges vested in or enjoyed by the Company immediately before the date of transfer.

Power to
purchaser to
remove por-
tions of pier.

7. The purchaser may after the date of transfer with the approval of the Board of Trade remove any portion of the pier authorised to be constructed by the Act of 1893 which may in the opinion of the purchaser be unnecessary for the proper

carrying on of the undertaking provided that any such removal shall be carried out to the satisfaction of the Board of Trade. A.D. 1916.

8. The purchaser and any authority company or body in whom the undertaking may for the time being be vested may with the consent of and upon such terms and conditions as may be sanctioned by the Board of Trade by deed to be approved by that Board transfer the undertaking to any other authority company or body legally constituted with perpetual succession duly authorised to purchase the same And the sections of this Act of which the marginal notes are—

Power to
resell under-
taking.

“Purchaser to exercise powers of Company”;

“Power to purchaser to remove portions of pier”;

“For protection of urban district council of Weston-super-Mare”;

“Extension of time for completion of works”;

“Provision as to general Acts relating to piers &c.”;

shall mutatis mutandis extend and apply to and in the case of any such transfer and to the authority company or body in whom the undertaking is for the time being vested.

9. The consideration money for the purchase of the undertaking shall be paid to the Official Receiver and shall together with any other available assets of the Company be applied by him as follows (videlicet):—

Application
of purchase
money and
other assets
of Company.

(1) In payment of the costs charges and expenses of and incident to the preparing applying for obtaining and passing of this Act properly incurred by the Official Receiver :

(2) In payment of the costs charges and expenses properly incurred by the Official Receiver in connection with the sale of the undertaking :

(3) In payment of the general costs charges and expenses of the liquidation of the Company including the costs of the petition for the winding up of the Company :

(4) In payment to the holders of debenture stock debentures or debenture bonds of the Company of the moneys due to them for principal and interest equally and rateably between them according to the amounts of the debenture stock debentures or debenture bonds

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held by them respectively and to the other creditors of the Company the amounts of their debts as allowed by the Official Receiver or such rateable proportion of such principal interest and allowed debts respectively as the purchase money shall be sufficient to provide after making the payments mentioned in subsections (1) (2) and (3) of this section but not exceeding in the whole twenty-three thousand six hundred pounds :

- (5) And the balance (if any) shall be applied in payment to the contributories of the Company equally and rateably between them.

Such payments as aforesaid shall be in full satisfaction and discharge of the debenture stock debentures debenture bonds and other debts of the Company and of all rights claims and demands against the Company or the undertaking or against the purchaser in respect thereof.

Dissolution
of Company.

10. So soon as the purchase money of the undertaking and other available assets of the Company shall have been applied in manner provided by the immediately preceding section and the affairs of the Company have been wound up and the Official Receiver shall have obtained his release the Company shall by virtue of this Act be dissolved.

Receipt in
case of per-
sons not sui
juris.

11. If any money is payable to a debenture stock debenture or debenture bond holder mortgagee or contributory being a minor idiot or lunatic the receipt of the guardian committee or receiver of his estate shall be a sufficient discharge to the Official Receiver and the Company.

For protec-
tion of urban
district coun-
cil of Wes-
ton-super-
Mare.

12. For the protection of the urban district council of Weston-super-Mare (hereinafter referred to as "the council") the following provisions shall unless otherwise agreed in writing between the council and the Company apply and have effect:—

- (1) Notwithstanding anything contained in any Act relating to the Company it shall not be lawful for the Company to erect or construct on the approach to the pier authorised by the Act of 1893 any buildings or erections of any description except a toll house and toll gates in connection therewith and any such toll house and toll gates shall be constructed according to such designs and of such height and materials as the council shall approve :

- (2) No buildings or erections of any description shall without the written consent of the council first had and obtained be erected or placed upon any portion of the esplanade (formerly termed the Royal Parade and now called the Marine Parade) numbered 1 on the plans deposited in respect of the Act of 1893 at a greater distance than six feet from the western extremity of the boundary wall of the esplanade that is to say the point of commencement of the approach to the pier :
- (3) The Company shall not obstruct or interfere with the free user by the public of the slopes or landings situate upon any part of the lands numbered 1 on the said plans deposited in respect of the Act of 1893 :
- (4) Notwithstanding anything contained in any Act relating to the Company or shown on the said plans deposited in respect of the Act of 1893 it shall not be lawful for the Company to construct or erect upon the pier any waiting refreshment and other rooms and saloons pavilions and other accommodation or any other buildings or erections (other than a bandstand and such number of ornamental shelters to be used solely as such as the council shall agree to and to be constructed according to such designs and of such height and materials as the council shall approve) within a distance of three hundred yards from the commencement of the said approach to the pier :
- (5) All rooms saloons pavilions and other buildings erections works and conveniences authorised to be constructed or erected on the pier or the approach thereto respectively or in connection therewith shall be constructed erected and executed to the satisfaction of the surveyor for the time being of the council and according to plans sections and elevations to be previously submitted to and approved by the council :
- (6) The business of the Company and any other business and any exhibition or entertainment carried on at or on the pier or the approach thereto or in any

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refreshment room saloon pavilion or other building erection work or convenience erected or to be erected on the pier or the approach thereto (all of which are in this section included in the expression "building") shall be so conducted as to ensure that order and decency are maintained at or on the pier and the approach thereto and in such building and the Company shall not cause or suffer any indecent improper or disorderly show exhibition or entertainment to be exhibited or given on the pier or the approach thereto or in any building:

- (7) No drink of an intoxicating character shall be sold within the grand or principal pavilion erected upon the pier or on the said approach or on the pier within a distance of three hundred yards from the point of commencement of the said approach:
- (8) The Company shall not affix or exhibit or permit to be affixed or exhibited any advertisement upon any part of the pier or of the approach thereto (including the girders piles and columns supporting the same or connected therewith) or upon any part of any building:

Provided that this subsection shall not prevent the exhibition in such position and in such manner as not to disfigure the natural beauty of the view of Weston Bay from the Marine Parade the Marine Drive the sea beach or the sands of advertisements relating solely to the business of the Company whether carried on by the Company or by any lessee or tenant of the Company and to any entertainment or exhibition on the pier:

Provided also that this subsection shall not prohibit the exhibition of advertisements in the interior of any building and not visible from the exterior of such building:

- (9) No cattle or sheep or any merchandise which in the opinion of the council may be objectionable shall be shipped or unshipped at the pier:
- (10) The Company shall not use or permit to be used the pier on Sundays for excursion traffic coming seawards:

(11) All pleasure boats belonging to or employed by the Company and all boatmen or other persons in charge thereof shall be subject to the byelaws for the time being in force of the council so far as such byelaws are applicable to any such pleasure boats boatmen or other persons : A.D. 1916.

(12) In this section the expression " the Company " means the Company and as on and from the date of transfer the purchaser and the successors and assigns of the purchaser.

13. Section 51 of the Act of 1893 section 5 of the Act of 1897 section 6 of the Act of 1899 and the agreement set forth in the schedule to that Act section 5 of the Act of 1904 section 4 of the Act of 1907 and section 4 of the Act of 1912 are hereby repealed so far as not repealed by previous Acts. Repeal of certain sections of previous Acts.

14. The time limited by the Act of 1893 as extended by the Act of 1897 the Act of 1899 the Act of 1904 the Act of 1907 and the Act of 1912 for the completion of the pier and works authorised by the Act of 1893 is hereby extended for a period of five years from the twelfth day of May one thousand nine hundred and seventeen and if the pier and works are not completed within such extended period then on the expiration thereof the powers by the Act of 1893 the Act of 1897 the Act of 1899 the Act of 1904 the Act of 1907 the Act of 1912 and this Act granted for making and completing the same or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed. Extension of time for completion of works.

15. Nothing in this Act contained shall exempt the Company or the purchaser or the pier and works by the Act of 1893 authorised from the provisions of any present or future general Act relating to harbours docks or piers. Provision as to general Acts relating to piers &c.

16. The costs charges and expenses of and incident to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Official Receiver out of the available assets of the Company. Costs of Act.

Printed by EYRE and SPOTTISWOODE, LIMITED,
FOR

FREDERICK ATTERBURY, Esq., C.B., the King's Printer of Acts of Parliament.

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